

24SMCV05129 24SMCV05129

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-09-04

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SM%20%2CI%2C09%2F04%2F2026

Source SHA-256: 49a994daafa7b5a0d6d4ba1fd13dd12e0b94f11588eac54c71fe740e42fc46a6

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This is a motion to compel further brought by cross

complainant Gilinski against defendant Kenig.

The response by Kenig is essentially that everything that was a problem has since been rectified and the motion is essentially moot.

The court will inquire as to the production. If it is now complete, that is something and moots out that part of the motion.

The court agrees with the moving party as to "if any." That is not an appropriate qualifier. If there are no responsive documents, then a

statement under 2031.230 is required. If

some documents can be produced but others cannot, then a statement of

compliance is required as well as a statement under 2031.230. If all responsive documents are being produced, then "if any" has no meaning. However,

the court puts little weight on this if the statement is made on the theory

that in the time available the responding party has not completed the search

for documents and plans to supplement with a 2031.230 statement (verified) if

appropriate. "Available from others" is

not a valid objection. The requesting

party is entitled to know what the producing party has. The requests do not appear to be vague or

ambiguous, and to the extent that they are, the response needs to explain

how. The opposing party is correct that

it need not produce documents not in its possession, custody, or control, but

if there are documents not being produced on that basis, then 2031.230 may come

into play. Also, the fact that

technically the document is in the possession of a jural entity that the

responding party controls, does not mean it need not be produced. It still must be produced because it is in

the responding party's control and possession and custody. Kenig seems to be saying that no documents

have been withheld on a basis of privilege, so that is good. Further, the responses are all subject to the objections. That is not appropriate. The responding party needs to be clear as to whether any documents are in fact being withheld on the basis of the objections, otherwise the verification is useless. If no information is being withheld, then the objections are really a non-issue. The responding party can object because it's Tuesday so long as nothing is being withheld on that basis. But if something is being withheld, the other side needs to know where the line is so that a proper decision on whether to file a motion can be made. However, all of the above needs to be set forth with a supporting verification so that the responding party can be held to the answers at trial.

The court will inquire as to whether these issues have really been resolved. If they were, then there is the question of sanctions. That will depend in part on the meet and confer.

Two letters and an email is not sufficient. And when the court reviewed the record, one of the emails/letters related to the original bad faith responses (which were in bad faith and were objection only).

The other said a meet and confer letter would follow. The court is not sure it saw the actual meet and confer letter. Assuming that this is the extent of the meet and confer efforts, there will be no sanctions. As stated, the court will discuss whether the other issues are now resolved.

For the parties' future guidance, the court appends its Guidelines on Discovery.

DISCOVERY RELATED GUIDELINES FOR DEPARTMENT I

The guidelines below are not "rules" and they are not universally applicable in all cases. Rather, they are guidelines as to the court's general views. Each case, of course, will be decided on its own facts and circumstances, and some of the guidelines below may not apply to particular circumstances. That said, the court does take these views seriously.

Discovery

Responses

The court provides the following guidance concerning its general views on some common issues regarding responses to written objections.

The court has noticed that many attorneys view objections and the manner of making them in a way different than does the court. To avoid these common pitfalls, the court offers the following in addition to the provisions of the Litigation Guidelines appended to the Los Angeles County Superior Court Local Rules.

First,

“General Objections” are not permitted.

The Code of Civil Procedure does not provide for them, and therefore they are disregarded by the Court. Any response that “incorporates” the “General Objections” is improper by definition.

Second,

the court often views boilerplate objections as being in bad faith. A bad faith response is no response at all in the court’s view. Therefore, making boilerplate objections does not preserve those objections nor does it constitute a good faith response to written discovery. A bad faith response is viewed by the court for what it is: bad faith. The objections will be stricken and deemed waived. In the context of a Request for Admission, such objections may lead to a finding that the request is deemed admitted, although that will depend on the facts of the particular case and the specific discovery at hand.

Objections should

be tailored to each specific request. If

a request truly is overbroad, then an objection to that effect is proper. But such an objection is best accompanied by some reasonable limitation by the responding party that will narrow the request appropriately and (as narrowed) provide a substantive response rather than a mere statement that the request is overbroad.

The same is true as to an objection that a request is unduly burdensome. The court also notes that

the party asserting that a request is unduly burdensome has the obligation at some point to provide an evidentiary basis for the objection, including evidence as to what the burden of compliance would be. (West Pico Furniture Co. v. Superior Court

(1961) 56 Cal.2d 407.) Often such an objection will include a statement by the responding party as to a narrower request that would not be unduly burdensome and provide substantive responses as so limited. Objections that a request is "vague and ambiguous" should set forth the vague and ambiguous term as well as the responding party's reasonable interpretation of that term as well as a statement that, so interpreted, the response will provide the discovery requested. If there is no reasonable interpretation possible (which is a rare situation), then the responding party should so state. Objections as to privilege must set forth the basis explaining why the information sought is in fact privileged. Where a privilege is asserted in the context of a document request, a privilege log should accompany the answer or be provided within a short and reasonable time after the answer, and the log will serve as the explanation. Where the objection is made in the context of an interrogatory, it must be clear from the objection the scope of the information being withheld. If there is no log, there should be no privilege objection to a document request (meaning that a prophylactic privilege objection is the equivalent of no objection; it preserves nothing). There are some rare exceptions, such as where the entire point of the discovery is to get allegedly privileged information or where compliance would require a log that is in essence an index of counsel's file. In that situation, the log is unnecessary, but the assertion should be made that the request is in that rare context.

Third, if an objection is made to the discovery but a response is being given, it must be clear whether information or documents are in fact being withheld on the basis of the objections. If the objections are clear and done in the manner set forth above, with statements in the objection as to a narrowing that will make the request proper, this is usually a simple task. The objections themselves state the limit and the response will be full and complete as limited. But where the objections are not so clear, the response must clearly state whether any information or document is being withheld on the basis of the objection and, if so, the extent of the withholding. Accordingly, in those situations, phrases like "Notwithstanding and subject to the foregoing objections, responding party states as follows" are generally improper. Those sorts of phrases make the verification useless, as the verifier can always fall back on the "objections" as the reason

why a document was not produced or information was not disclosed. On the other hand, where the line of demarcation is clear, the verification will still serve its purpose.

Fourth, for document requests, the substantive response must conform to the Code of Civil Procedure. There are relatively tight rules as to what the response must say, and the response must say it. For example, where a responding party is not producing documents because they are not in the party's possession, custody, or control, the responding party must verify that a diligent search has been made and must further provide the information set forth in the Code of Civil Procedure section 2031.230 in such cases.

In the case of interrogatories, the responses must also conform to the Code of Civil Procedure and must be made after diligent inquiry. It is not proper to refuse to respond because the responding party has no personal knowledge.

If the knowledge is hearsay, it must still be disclosed, although it can be qualified to make it clear that it is not based on the verifier's personal knowledge.

Fifth, the court frowns on responses that do not conform to the foregoing rules being served with the view that the responses will moot themselves out in the meet and confer process. That is not how the process works. A good faith response is required before the meet and confer process begins. The meet and confer process will (hopefully) bridge the gaps between the parties' respective positions. Further, where a response to a request for documents is made and documents are to be produced subject to certain objections (with the documents withheld properly delineated), the documents should be turned over irrespective of the meet and confer. The documents are to be produced with alacrity to the extent that there is no objection to them, but the court recognizes that there is often a lag between the date responses are served and the date that the documents are produced.

What this means is that the response to a discovery request is not a trivial undertaking. Nabbing the response from the form file is a generally bad idea and can lead to all objections being waived. The point is that the boilerplate often renders the remainder of the response useless.

The only exception is where it is clear that the substantive response is not in any way limited by the objections.

In that case, the objections do no harm, although they also do no good.

Meet and Confer

The Code of Civil Procedure requires that before a motion to compel further responses or a motion for a protective order is filed, the parties engage in a good faith attempt to resolve their differences. They are to “meet and confer” for that purpose. Only if that effort fails can a motion be brought.

Sadly, many litigants view the meet and confer process as just another procedural hoop through which they must jump in order to bring the motion, similar to the need to include an actual demurrer with the demurrer papers. The Code of Civil Procedure requires it, so they do it, but no one’s heart is really in it. That is not sufficient.

Given that, the court believes it appropriate to set forth how the court views the meet and confer requirement. Failure to abide by the guidelines below may well justify denial of the motion or a continuance of it to allow the process to take place. If one party but not the other refuses to participate as set forth, more likely than not the party refusing to participate will find itself on the losing end of the motion. The following quotation fairly sums up the court’s own view.

“[W]e feel compelled to observe that resort to the courts easily could have been avoided here had both parties actually taken to heart Justice Stone’s admonitions in *Townsend* that ‘the statute requires that there be a serious effort at negotiation and informal resolution.’ (*Townsend*, supra, 61 Cal.App.4th at p. 1438.) Perhaps after 11 years it is necessary to remind trial counsel and the bar once again that ‘[a]rgument is not the same as informal negotiation’ (*id.* at p. 1437); that attempting informal resolution means more than the mere attempt by the discovery proponent ‘to persuade the objector of the error of his ways’ (*id.* at p. 1435); and that ‘a reasonable and good faith attempt at informal resolution entails something more than bickering with [opposing] counsel. . . . Rather, the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate.’ (*Id.* at p. 1439.)” (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1294, emphasis in original, parallel citations omitted.)

In practical terms, it means as follows. It is entirely appropriate to begin the process with a letter or other correspondence.

The letter should not include a demand in the form of an ultimatum, but it can certainly include the relief that is being sought with an invitation to meet and confer. It is also entirely appropriate for the other party to respond with a letter or other correspondence to set forth its position on the issues.

Such an initial exchange can often be helpful to narrow the dispute or at least articulate plainly the boundaries.

Whether further exchanges make sense will depend on each case and each dispute.

However, at some point before impasse is reached the process must generally include an actual “meet.” The letters might well suffice to “confer,” but an exchange of correspondence is not a meeting. In the COVID-19 era, the “meeting” can be virtual or telephonic, but a meeting there should be. The meeting must be attended by a person from each side with the authority to agree to the other side’s position without getting further permission from anyone, including the client. If only the client can give the needed authority, then the client must be available instantaneously at all times during the meeting. This does not mean that one side or the other must concede, but it does mean that the people meeting have the ability in real and practical terms to strike a deal.

The parties should approach the meet and confer process as a problem-solving exercise.

The purpose of the meet and confer is not to convince the other side of the bankruptcy of its position; rather the purpose is to reach an agreement by which the party seeking discovery is able to obtain the information that it reasonably needs and the party providing discovery is not put to an undue burden or forced to provide unnecessary information that might infringe on a privacy interest or disclose a competitive trade secret or the like.

At the conclusion of the meet and confer, the parties should have an agreed statement as to the outcome. If the outcome is a total impasse, then they should agree on that. If they have resolved some or all of their differences, then they should state—in writing—what that agreement is so that there will be no confusion later. Often, an agreement will be without prejudice to a further request by the propounding party for more information after that party receives the further responses.

If a motion is still required, the declaration in support should describe with some detail the meet and confer process. While the court is not interested in the back and forth (and indeed describing it can be counter-productive), the court is interested in when the meeting took place, who was there, and how long it lasted.

All communications—in writing or oral—must be civil, polite, and professional.

Name-calling and accusations are devices that undermine the process; they do not further it. A party engaging in such activity generally is not acting in a good faith effort to reach an agreement.

Informal
Discovery Conferences

The court generally prefers an Informal Discovery Conference (IDC) before any party files a motion to compel further responses, and the failure to use this avenue of resolution can greatly affect the amount of sanctions that might be awarded because sanctions are limited to fees that are reasonable and necessary. The goal of the IDC is to “get to yes.” To achieve that goal, the court adopts the following.

Five court days before the IDC, the parties will submit a JOINT statement no more than eight pages total (on pleading paper, but excluding the caption page) setting forth their respective positions. Where a similar issue is raised that will resolve many requests, it can be dealt with as a single issue.

The IDC follows the good faith meet and confer. It is not a substitute for the meet and confer. The court's time is to be spent only on issues after the parties have tried to narrow the dispute as much as possible.

As stated above, the goal is to “get to yes.” This means a few things. One is that each party must be represented by a person who has the authority to agree to the other side's position without getting further permission. It need not be lead counsel and that authority need not be exercised.

But the people at the conference must have that authority. If only the client has that authority,

then the client will be present physically with counsel in an adjacent room without distraction after initial introductions are made.

All IDC's are "off the record." That means that whatever anyone says at the IDC will not be binding or quoted back at the party unless an agreement is struck. It is very bad form to quote the court's comments at an IDC during a later hearing unless the comments were part of a stipulated order.

All parties have the right to change position if no deal is reached. The court, for example, might strongly indicate that it believes one side or the other has the better position but rule in a completely different way if there is a formal motion. Partial agreements that are contingent upon a full resolution are not binding unless a full resolution is reached. Partial resolutions that are not contingent on a full resolution are binding. Parties who are suggesting a resolution should make it clear whether their proposal depends upon other resolutions.

Parties should be especially willing to give up sanctions at an IDC if it will resolve the dispute. That is not a requirement, but the court's experience is such that if a party is really going to insist on a sanction, the likelihood of a resolution is very low.

It is likely that no party will get everything that it wants. The goal is to abide the Code of Civil Procedure, but at the same time make sure that the party seeking discovery is not creating busy-work or demanding a lot of work for no benefit (or virtually no benefit).

The responding party might well have the right (should it come to motion practice) to avoid some aspect of the discovery, but in order to get to a resolution it might be in the responding party's interest to be willing to offer something. Conversely, the propounding party might have the right (should it come to motion practice) to get some aspect of discovery, but in order to get to a resolution it might be in the propounding party's interest to forego aspects of the discovery that are not really needed, perhaps reserving the right to seek that information at a later time should it prove necessary.

The point is not to have the court simply hammer away at the opponent. That might happen at a motion, but it is not the goal of the IDC.

No orders will be made except on stipulation. However, if there is an agreement, the court may well want to make an appropriate order or ask the parties to confirm it in writing.

Parties should take careful notes on any agreements. Because there are no Court Reporters, it is hard to put an agreement on the record.

However, unless the agreement is confirmed quickly, people have a tendency to forget or to have "buyer's remorse." Therefore, it is best to have one party send an immediate confirming email to the other and obtain an agreement. The court would prefer not to get into the specific wording of the agreement during the IDC unless absolutely necessary.

The IDC process does not work if people view it as just a necessary step to filing a motion.

The court does not see it that way—if it did, then the court would abandon the IDC as a waste of time.

Rather, this is an off-ramp to avoid motion practice and the attendant costs and time.

Hopefully, it is also a way to get discovery more quickly than through formal motion practice.

At the IDC, no matter how hot tempers have run in the past, the court expects all counsel to be polite and civil in tone to one another. The court will not tolerate rudeness or unnecessary accusations. They do not move the ball forward and they make it nigh impossible to reach an agreement.